

THE WAY

Adoption & Organizational Instantiation Packet

Founder stewardship, corporate interface, future board ratification, filing gates & first institutional actions

Version 1.1 | September 21, 2026

Working organization: UNDECIDED

Purpose

Convert the v1.0 religious synthesis into a truthful sequence of actions that can begin before incorporation without pretending that a corporation, board, House of Prayer, or tax-exempt entity already exists.

1. Current factual status

Domain	Current state	Implication
Religious baseline	Constitution of the Way v1.0; Teaching & Practice Baseline v1.0; Companion Handbook v1.0	Complete as founding drafts
Legal name	UNDECIDED	Open
Tennessee corporation	Not yet formed	Open
Statutory members	Working decision: no statutory members at formation	Must be confirmed in charter before filing
Directors	Founder only identified	Not filing-ready: Tennessee board requires at least 3 natural persons
Officers	Founder only identified	Not organizational-meeting-ready: President and Secretary must be different people
Registered/principal offices	Placeholders	Must be completed before charter filing
Federal exemption	No application filed	Prepare full Form 1023 after organization/facts support filing
House of Prayer	No formally recognized House yet	Pilot begins as Founding Gathering Circle / pre-recognition pilot

Integrity rule

No document in this packet may be backdated or used to represent an action as taken before the actual person or body with authority takes it.

2. What can happen now, before incorporation

- Founder may adopt the v1.0 religious corpus as a personal stewardship baseline for organizing and pilot purposes.
- Founder may convene voluntary exploratory gatherings under the name “Founding Gathering Circle” or similar language that does not imply an already recognized corporation or House.
- Founder may recruit prospective directors and officers using the existing board-recruitment system.
- Founder may test prayer, study, fellowship, service, and discernment formats with adults who understand the experimental status.
- Founder may maintain research, drafting, public education, and nonbinding formation materials.
- Founder should not represent that a Tennessee nonprofit, Board, official House of Prayer, IRS-recognized 501(c)(3), tax-deductible donation program, commissioned clergy system, or separate legal entity exists before it does.

3. Actions that require the future corporation or board

Action	Required authority/state
Corporate charter filing	Incorporator; filing accepted by Tennessee Secretary of State
Bylaws adoption	Initial Board after formation, unless lawfully handled through organizational action
Election/appointment of officers	Board under bylaws
Corporate bank account / contracts	Authorized corporate officers or agents after formation/EIN as applicable
Recognition of a House of Prayer as an official corporate program	Board or delegated authority under adopted policy
Employment or founder compensation	Disinterested Board process with comparability and documentation
Corporate acceptance of donations	Corporate authorization, financial controls, correct solicitation/tax representations
Form 1023 filing	Authorized organizational representative after organizing document and operations are coherent
Commissioning on behalf of the organization	Authorized religious process operating under adopted policy

4. Working founding decisions

Decision	v1.1 position	Status
Corporate character	Tennessee public-benefit religious nonprofit corporation	Working decision
Statutory membership	No statutory members at formation	Working decision; charter must expressly state this
Religious belonging	Companion status remains a religious identity and does not create corporate voting membership	Fixed constitutional principle
Board target	Minimum legal board: 3; target formation board: 5; mature target: 7-11 with $\geq 2/3$ independence	Working governance standard
Founder role	Founder + prospective President/Executive Director; not Board Chair	Working decision
Secretary	Must be another person	Legal requirement under current Tennessee statute
Compensation	Initially \$0 except lawful expense reimbursement; later prospective compensation only after independent approval	Working safeguard
Federal path	Prepare full Form 1023; initially evaluate public-supported religious public charity classification rather than asserting church facts that do not yet exist	Working tax strategy
Fiscal year	December 31	Fixed

5. Document hierarchy and interface

The Way now needs two parallel hierarchies that touch each other without being confused.

Layer	Hierarchy	Function
Civil / corporate	Applicable law -> filed charter -> bylaws -> lawful Board resolutions/policies -> delegated procedures	Controls property, contracts, fiduciary power, employment, finances, tax compliance, civil authority.
Religious / communal	Constitution of the Way -> Teaching & Practice Baseline -> Companion Handbook -> House/ministry standards -> local practice	Controls religious identity, teaching status, formation, worship/practice, religious roles, conscience safeguards.
Interface rule	Corporate documents should recognize the religious Constitution for religious identity and rights, but civil powers remain where law/charter/bylaws place them.	Prevents spiritual language from silently reallocating legal power.

Conflict rule

If a religious policy purports to authorize conduct that civil law, the charter, bylaws, safeguarding duties, fiduciary duties, or valid contractual obligations prohibit, the civil obligation governs the corporate act. The Assembly may then revise the religious policy without treating legal compliance as theological betrayal.

6. Pre-incorporation Founder Stewardship Declaration

This section may be signed now. It is intentionally a founder/organizer declaration, not a corporate resolution.

I, [[FOUNDER LEGAL NAME]], as founder and organizer of the developing religious community presently using the working language “the Way,” voluntarily adopt the following stewardship commitments for the pre-incorporation period:

1. I will use the Constitution of the Way v1.0, Teaching & Practice Baseline v1.0, Companion Handbook v1.0, and the Institutional Integrity & Anti-Coercion framework as the provisional religious and ethical baseline for organizing, research, pilot gatherings, recruitment, and future incorporation work.
2. I acknowledge that this personal adoption does not create a corporation, Board of Directors, statutory membership body, recognized House of Prayer, tax-exempt determination, clergy credential, property right, or legal authority that does not otherwise exist.
3. I will not describe my founder status as ownership, infallibility, prophetic supremacy, irrevocable leadership, automatic compensation entitlement, or a right to select my successor.
4. I will not treat a private spiritual experience, claimed revelation, dream, vision, intuition, or conviction as sufficient authority to override consent, safeguarding, civil law, financial controls, the future corporation’s governing documents, or another adult’s conscience.
5. I will preserve criticism, outside relationships, safe exit, independent advice, and the right of participants to decline religious identity, donation, fasting, counseling, housing, service, or ministry.
6. I will transfer operational and fiduciary authority to the duly constituted corporate Board when the corporation is formed and will submit founder compensation, related-party transactions, complaints, safeguarding allegations, and conflicts to the independent processes previously designed.
7. I understand that the future Board and Assembly may correct, amend, or reject my proposals through the lawful processes of their respective domains.
8. I will not backdate later approvals or use this declaration to imply that a future Board has ratified an action before actually doing so.

Founder / Organizer	_____
Signature date	_____
Witness (optional)	_____

7. Tennessee filing gates

Gate	Requirement / plan	Status
Legal name	Distinctive, available name selected and clearance review complete	OPEN
Public benefit / religious statement	Charter states public-benefit and religious corporation	READY IN MODEL
Registered agent/office	Registered agent and street address completed	OPEN
Incorporator	Name/address completed	PARTIAL
Principal office	Street/mailling information completed	OPEN
Nonprofit statement	Charter states not for profit	READY IN MODEL
Members statement	Charter states corporation will not have members	WORKING DECISION
Dissolution clause	501(c)(3)-compatible charitable/religious dissolution language	READY IN MODEL
Purpose clause	Limited to 501(c)(3)-compatible religious/charitable/educational/scientific purposes	READY IN MODEL
Directors	At least 3 natural persons identified for compliant board; target 5	OPEN
Officers after formation	President and Secretary different persons	OPEN

Current Tennessee sources require the charter to state whether the corporation will or will not have members; require a nonprofit board of at least three natural persons; and require a president and secretary who cannot be the same individual. See Source Notes.

8. Future Board ratification sequence

1. Confirm the legal name, charter, no-statutory-member decision, registered/principal offices, and initial directors.
2. File the Tennessee nonprofit charter and obtain accepted formation record.
3. Obtain EIN and establish the corporate record book.
4. Convene the organizational meeting or execute lawful written action under counsel-confirmed procedures.
5. Adopt bylaws and the nonmember governance schedule.
6. Elect/appoint President, Secretary, Treasurer/finance role, independent Chair, and committees as available.
7. Ratify the Institutional Integrity & Anti-Coercion framework, Participant Rights, Founder Covenant, conflict/compensation/finance/safeguarding/complaint policies.
8. Recognize the Constitution of the Way v1.0 as the current religious constitution of the community, subject to the corporate-interface schedule below.

9. Adopt the Teaching & Practice Baseline v1.0 and Companion Handbook v1.0 for pilot use, while preserving the review/amendment process.
10. Authorize the first official House-in-Formation only after the safeguarding, complaint, finance, insurance/site, and delegated-authority gates are satisfied.
11. Authorize full Form 1023 preparation and filing only after activities, finances, compensation arrangements, and public-support assumptions are supportable by actual facts.

9. Model Board resolution: religious Constitution and interface

Use only after a lawful Board exists

The text below is a future model resolution. Do not sign or date it as Board action before the corporation exists and the Board actually acts.

RESOLVED, that the Board recognizes the Constitution of the Way v1.0 as the current religious constitution governing religious identity, participant rights, Companionship, the Assembly, Houses of Prayer, ministry vocabulary, epistemic integrity, teaching status, and religious practice of the community served by the Corporation;

FURTHER RESOLVED, that this recognition does not alter powers assigned by applicable law, the filed charter, or the bylaws to the Board, officers, members if any, or other legal actors;

FURTHER RESOLVED, that no claimed revelation, religious vote, House practice, founder preference, Minister statement, or Council decision may authorize the Corporation to disregard safeguarding, fiduciary, employment, tax, financial-control, reporting, contractual, or other civil obligations;

FURTHER RESOLVED, that the Board adopts the Teaching & Practice Baseline v1.0 and Companion Handbook v1.0 as current pilot standards for the Corporation's religious programming, subject to their stated confidence levels and review processes;

FURTHER RESOLVED, that any proposed corporate action materially reducing the participant rights, founder limits, non-retaliation rules, safeguarding duties, or epistemic-integrity safeguards of the Constitution shall receive heightened review under the charter/bylaws and Institutional Integrity framework before action.

10. Model corporate-interface schedule

Domain	Primary actor	Scope	Boundary
Religious teaching	Assembly / authorized religious process	Teaching status, practice, formation, rites	Cannot bind corporation to illegal or unauthorized civil action.
Corporate fiduciary action	Board	Property, contracts, banking, employment, budgets, filings	Must respect chartered purposes and adopted participant-rights safeguards.
House operation	Delegated House leadership + corporate oversight	Local gatherings and religious programming	No independent debt, employment, banking, property contracts, or legal personality without delegation.

Domain	Primary actor	Scope	Boundary
Ministry commissioning	Authorized religious process under Board-adopted policy	Defined religious functions	No automatic compensation, corporate signing power, confidentiality privilege, or lifetime office.
Founder	Historical founder + any separately appointed office	Only authority of current written office/commission	No veto, immunity, succession right, or self-set compensation.
Complaints/safeguarding	Independent committee/channel; external authorities where required	Safety, allegations, retaliation, investigations	Overrides ordinary reporting lines when independence or law requires.

11. Donations, fundraising, and public claims before filing

- Do not imply that “UNDECIDED Inc.” exists until formation is accepted.
- Do not state that contributions are tax-deductible unless the organization’s actual status and timing have been confirmed by qualified tax counsel/accounting guidance.
- Do not open organizational bank/payment accounts in an individual’s personal name and present them as corporate accounts.
- If exploratory participants reimburse actual shared costs before incorporation, document the arrangement transparently and do not describe the payment as a charitable donation unless legally supportable.
- Before public fundraising, confirm the Tennessee charitable-solicitation posture. Tennessee currently lists bona fide religious institutions among exempt organizations, but the new organization should not rely on an exemption merely because it intends to become religious; facts and filing requirements should be confirmed at the time.

12. Adoption status ledger

Artifact / action	Pre-incorporation	Post-incorporation	Review
Constitution of the Way v1.0	Founder stewardship: may adopt now	Future Board: recognize/ratify after formation	Assembly: pilot and later communal review
Teaching & Practice Baseline v1.0	May use for pilot now	Board adopts as program standard after formation	Annual research review
Companion Handbook v1.0	May distribute to consenting adult pilot participants	Board adopts for official programming	Revise from pilot feedback
Institutional Integrity framework	Use as founder constraint now	Board formally adopts policies after formation	Entrenched protections should carry into corporate docs
House of Prayer recognition	Not yet	Board/delegated authority after gates satisfied	Pilot begins below recognition level
Commissioning	Do not issue official organizational commissions yet	Activate after policy, supervision, complaint channel, formation/practicum are operational	Religious process thereafter

13. Source notes - current legal/tax checkpoints

L1 - Tennessee Code §48-52-102 (2025): nonprofit charter contents include corporate name; public/mutual benefit status; religious statement if applicable; registered office/agent; incorporator; principal office; not-for-profit statement; statement whether the corporation will or will not have members; dissolution provisions. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-52/section-48-52-102/>

L2 - Tennessee Code §48-58-103 (2025): nonprofit board must consist of three or more natural persons. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-1/section-48-58-103/>

L3 - Tennessee Code §48-58-401 (2025): every corporation must have a president and secretary; the same person may hold multiple offices except president and secretary. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-4/section-48-58-401/>

L4 - Tennessee Secretary of State, Business Forms & Fees: domestic nonprofit Charter form SS-4418 currently listed at \$100; name reservation SS-9425 at \$20. <https://sos.tn.gov/businesses/forms-and-fees>

L5 - Tennessee Secretary of State charity FAQ/search: bona fide religious institutions are listed among organizations exempt from charitable registration; exemption facts and any exemption-request requirements should be confirmed before solicitation. <https://sos.tn.gov/search>

L6 - IRS Instructions for Form 1023: organizing document must limit purposes to §501(c)(3) purposes; church classification is a facts-and-circumstances path requiring Schedule A when selected. <https://www.irs.gov/instructions/i1023>